

TENTATIVE RULING: A status report is on file. Although there is no evidence that the status report was properly noticed and served on all interested persons (see Prob. Code, 12201), the Court determines that continuation of administration is in the best interests of the estate. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to November 20, 2026, at 8:30 a.m. in Dept. A. If final distribution petition is not already on file, Executors shall file and serve, at least 15 days prior to the next hearing, an updated status report pursuant to Prob. Code section 12200. The Clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

City of American Canyon v. Timothy J. Shea et al

20CV001254

MOTION FOR DETERMINATION OF LEGAL ISSUES REGARDING SEVERANCE DAMAGES AND GOOD WILL DAMAGES – FURTHER HEARING AS TO ISSUE 2 ONLY

TENTATIVE RULING: The Motion, as to Issue No. 2 (defined below), is DENIED. The parties are directed to appear to discuss Plaintiff’s request to bifurcate the matter.

A. PROCEDURAL MATTERS

Plaintiff City of American Canyon (“Plaintiff” or “City”) moves, pursuant to Code of Civil Procedure section 1260.040, subdivision (a),¹ for a determination of legal and evidentiary issues affecting determination of fair market value.

The City’s Motion sought six rulings (“Issues”). The matter originally came on for hearing on July 16, 2026. In an Order After Hearing (“OAH”), dated July 17, 2026, the Court denied, as moot, the Motion as to five Issues, Nos. 1, 3, 4, 5, and 6. With respect to the remaining Issue No. 2, the Court continued the hearing and granted (1) Defendants leave to file a Supplemental Opposition of no more than seven pages with supporting evidence on or before August 3, 2026 and (2) Plaintiff to file a Supplemental Reply of no more than seven pages on or before August 14, 2026.

The parties timely filed their supplemental briefs and evidence.

The remaining Issue No. 2 is a ruling as follows: “The construction of a center median as part of the Project, which will preclude trucks with a wheel-base of 40 feet or greater from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.” (Notice of Motion, 2:12-16.)

B. LEGAL STANDARD

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

“If there is a dispute between plaintiff and defendant over an evidentiary or other legal issue affecting the determination of compensation, either party may move the court for a ruling on the issue. The motion shall be made not later than 60 days before commencement of trial on the issue of compensation. The motion shall be heard by the judge assigned for trial of the case.” (§ 1260.040, subdivision (a).)

Under the Eminent Domain Code, a property owner is entitled to the value of the part taken and any damage to the remainder of the property (i.e. the portion of the parcel not taken). (§ 1263.410.) Damage to the remainder, often referred to as “severance damages,” can come from (1) the severance of the remainder from the part taken, or (2) the construction and use of the project for which the property is taken in the manner proposed by the agency whether or not the damage is caused by a portion of the project located on the part taken. (§ 1263.420.) “[A] showing of substantial impairment is only required when the taking interferes with access to the property from a public street.” (*City of Livermore v. Baca* (2012) 205 Cal.App.4th 1460, 1467.)

An urban landowner enjoys property rights in the street upon which his land abuts. (*Breidert v. Southern Pac. Co.* (1964) 61 Cal.2d 659, 663.) “Chief among these is an easement of access in such street. This easement consists of the right to get into the street upon which the landowner’s property abuts and from there, in a reasonable manner, to the general system of public streets.” (*Ibid.*)

C. DISCUSSION

1. Background

Defendants Tim & Rhonda, LLC and FRG Waste Resources, Inc. J. Shea (collectively “Shea” or “Defendants”) oppose the motion on the ground that Issue 2 is not subject to the substantial impairment test because Shea has a vested property right in the easement of egress that is being taken by the Project, and therefore, compensation is required.

The Court previously found, based on the evidence presented by Plaintiff (which was previously undisputed), that Plaintiff had established that the construction of a center median as part of the Project, which will preclude trucks with a wheel base of 40 feet or greater (“WB-40”) from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law because, prior to the Project, trucks with a WB-40 cannot *legally* egress via the Green Island Road driveway under Vehicle Code section 21460. (See OAH, p. 4.) (Declaration of Ramada (“Ramada Decl.”), ¶ 6, Ex. B.) The reasoning was that a landowner’s “right to get ..., *in a reasonable manner*, to the general system of public streets” does not include the right to egress his or her property by a maneuver that the law prohibits because that could not be considered reasonable. (See *Breidert, supra*, 61 Cal.2d at 663.)

Through its Opposition, Shea did not submit evidence to dispute that, prior to the Project, a WB-40 truck cannot *legally* egress via the Green Island Road driveway (i.e., cannot turn right from the driveway without crossing the double yellow centerline). At oral argument, Shea argued

that it intended to submit evidence that WB-40 trucks could turn right onto Green Island Road without crossing the double yellow line.

2. Shea's Creation of a Factual Dispute as to the Lawfulness of a WB-40 Truck's Right Turn

Shea's Supplemental Opposition relies on a Declaration of Peter K. Pirzadeh ("Pirzadeh Decl.") to show that, prior to the Project, WB-40 trucks can safely execute a right turn from the Property's Green Island Road driveway onto eastbound Green Island Road without crossing the double yellow centerline. (Suppl. Opp., 1:25-2:2; Pirzadeh Decl., ¶¶ 7-8, Exh. B.) Shea clarifies:

Shea is not asking the Court to choose between the experts on this motion. The point is narrower. Because competent evidence now disputes the very premise upon which the City's legal argument depends, the City cannot establish the undisputed factual foundation necessary for the categorical ruling it seeks. If the maneuver can be performed without crossing the centerline, Cal. Veh. Code § 21460 does not apply, and the basis for the City's argument disappears. [¶] At a minimum, the competing engineering analyses demonstrate that the City's asserted factual predicate is not established as an undisputed matter. For that reason alone, the City is not entitled to the categorical ruling it seeks under Cal. Code Civ. Proc. § 1260.040.

(Suppl. Opp., 4:1-10.)

The City's Supplemental Reply and Supplemental Declaration of Mr. Ranada ("Ranada Suppl. Decl.") point out that Mr. Pirzadeh's turn study, attached as Exhibit B to his declaration, shows that, in order for a WB-40 truck to complete a right turn out of the Green Island Road driveway without crossing the double yellow centerline of Green Island Road, the truck must (1) depart from the established driveway, (2) cross through an unpaved City-owned right-of-way, and (3) roll over the City-owned water meter that sits to the east of the Green Island Road driveway, resulting in damage to City property and damage to landscaping within the City right-of-way. (Ranada Suppl. Decl., ¶ 8; see also *id.*, ¶¶ 3-7, Exhs. A-C.)

The City argues that such a maneuver is unlawful under Penal Code, section 594, subdivision (a) and the City's Municipal Code sections 10.20.040 and 12.04.170. Penal Code, section 594, subdivision (a) defines vandalism as the malicious commitment of damage or destruction to any real or personal property not his or her own, including property belonging to a public entity. The Court does not believe the act of a WB-40 truck driving partially over a sidewalk and parking strip when exiting a driveway particularly susceptible to the definition of vandalism.

Municipal Code section 10.20.040 provides that "[t]he driver of a vehicle shall not drive within any sidewalk area or any parkway except at a permanent or temporary driveway." (Ranada Suppl. Decl., ¶ 9, Exh. D.) "Sidewalk" is defined as "that portion of a highway, other

than the roadway, set apart by curbs, barriers, markings or other delineation for pedestrian travel.” (Veh. Code, § 555.) Municipal Code section 12.04.170 makes it unlawful for any person to damage any tree, plant, or ground cover within any City open space. (Ranada Suppl. Decl., ¶ 9, Exh. E.)

Based on the foregoing, Shea’s showing that the maneuver can be performed without violating Vehicle Code section 21460 (crossing the centerline), but by violating Municipal Code sections 10.20.040 and 12.04.170 (driving outside a permanent or temporary driveway and damaging City landscape) would not create a dispute that a WB-40 truck cannot *legally* egress via the Green Island Road driveway as to Issue No. 2. If that were the case, the Court would determine that the construction of a center median as part of the Project, which will preclude WB-40 trucks from egressing via the Green Island Road driveway, is not a compensable item of damage that may be considered when valuing severance damages in this action.

That said, the Court notes that Pirzadeh’s Declaration states that a WB-40 truck can execute the right turn “while remaining entirely within the eastbound travel lane and the driveway apron, without any portion of the vehicle crossing the double yellow centerline.” (Pirzadeh Decl., ¶ 7.) As best the Court can tell, Mr. Pirzadeh’s illustration of the diagram attached as Exhibit B appears to show two different routes a WB-40 truck can take without crossing the double yellow centerline; one path to the far right of the driveway in green, and the other is more centered in yellow. (*Id.*, Exh. B.) The Pirzadeh Decl. does not identify whether its statement in Paragraph 7 is in reference to one or both paths. The City’s argument only seems to apply to the green path, as the yellow path does not appear to cross the City-owned property identified by Defendant and the Ranada Suppl. Decl. Because it is unclear and because one of the paths depicted in Mr. Pirzadeh’s illustration appears consistent with Mr. Pirzadeh’s declaration that the maneuver can be accomplished while remaining entirely within the driveway apron, the Court must indulge the inference in favor of the non-moving party, Shea. (See City’s Suppl. Reply, 3:16-19 [recognizing Court’s obligation to indulge every legitimate inference in the non-moving party’s favor and resolve conflicts in that party’s favor].)

Based on the foregoing, the Court finds that Shea has established that a WB-40 truck can legally accomplish the right turn egress via the Green Island Road driveway, or at the very least has created a factual dispute as to the City’s showing.

3. The City’s Alternative Argument of no Substantial Impairment

The City next argues in its Supplemental Reply that, even assuming *arguendo* a WB-40 truck could lawfully execute the right turn, the elimination of that single movement for a single class of vehicle, where another driveway exists, does not constitute a substantial impairment of access as a matter of law. (See Suppl. Reply, 4:8-6:27, citing *San Diego Metro Transit Dev. Bd. v. Price Co.* (1995) 37 Cal.App.4th 1541 (*San Diego Metro*) and *Holman v. State* (1950) 97 Cal.App.2d 237, 238-39.)

Shea disputes that contention, arguing that the relevant inquiry is not whether *some* access remains, but whether the Project eliminates a component of access reasonably related to

the Property's existing use. (Suppl. Opp., 5:3-10, citing *Rose v. State of California* (1942) 19 Cal.2d 713, 727-28.)

The Court has reviewed the abovementioned authority cited by the parties and finds that there is not sufficient evidence before the Court as to the consequences of WB-40 trucks being precluded egress via the Green Island Road driveway. For example, there is no evidence regarding the primary purpose of the Property, whether WB-40 trucks routinely ingress and egress from the Property, whether the highest and best use of the Property before and after the impairment remains the same, whether the alternate egress access point increases the distance of travel or difficulty for WB-40 trucks to egress therefrom, whether the Property could be used for the same purposes before and after the Project, and whether the Project would prevent or deter access to the Property for WB-40 trucks.

Rose seems to reject the suggestion that the taking of a previous right of access from one's property to the street or highway on which the property abuts, where another access point exists, is merely an inconvenience and not a substantial impairment, where there is evidence to support a finding of substantial and unreasonable interference with the landowner's easement of access or right of ingress and egress. (See *Rose*, *supra*, 19 Cal.2d at 728.)

San Diego Metro holds that "the trial court is required to compare the access available to the particular property before and after the impairment and then decide if the impairment is substantial. This determination requires the consideration of extensive evidence of the effect of the impairment of access to the property which existed before the impairment." (*Id.*, *supra*, 37 Cal.App.4th at 1547-48.) For example, the Court in *San Diego Metro* found the following evidence "substantial and sufficient to support the determination of the trial court" that there was no substantial impairment: "evidence that the access impairment only increased the distance of travel from the property to [one direction of] lanes, that the highest and best use of the property before and after the impairment remained the same, and that the property could be used for the same purposes before and after the impairment. There was no evidence that the impairment would prevent or deter access to any particular type of vehicle, like a delivery truck, or decrease the number of vehicles to which the property is available." (*Id.*, at 1549.)

Thus, contrary to the City's contention, the mere fact that alternative access to the property exists, does not appear to be the end of the inquiry for a proper determination of whether the substantial impairment test is met. Moreover, the evidence of alternative access to the property is simply that "[t]he Property is accessible via two driveways" (see Ranada Decl., ¶ 3), which notably does not specify that the Property is accessible by WB-40 trucks via two driveways.

Holman is distinguishable as the basis for the property owner's request for compensation was the diversion of traffic to the property; the court held that projects that result only in more circuitous and less convenient access to, and that divert the main stream of traffic from, the owner's business frontage, are not compensable. However, *Holman* expressly distinguished prior decisions, including *Rose*, as follows: "In all of the foregoing cases in which it was held that compensation must be paid there was ... a physical impairment of access from the property to the street, whether caused by change of grade, ... or by physical impairment of the property to

the street by the means of the construction of a physical barrier...” (*Id.*, *supra*, 97 Cal.App.2d at 241. Emphasis added.) As the California Supreme Court thereafter noted, “[t]he distinctions between these various situations and their impact on the actual value of the property is simply one of degree” and no general rule can be laid down to cover all situations. (See *People v. Sayig* (1951) 101 Cal.App.2d 890, 905; *Bacich v. Board of Control of California* (1943) 23 Cal.2d at 343, 355.)

Based on the foregoing, the Court does not conclude that Shea will not suffer a substantial impairment of access as a matter of law.

4. The City’s Alternative Request

The City requests that, if the Court declines to rule on Issue No. 2 on the present record, the Court should bifurcate trial and try the substantial impairment issue to the Court before any jury trial on compensation. (Suppl. Reply, 7:1-20.) This is the general sequence of events that the Court understands applies, as the issue of substantial impairment is a matter of law for the Court. However, the City did not raise this alternative request with its original moving papers. Nor has Shea had an opportunity to respond to the request made for the first time through the City’s Supplemental Reply. As such, the Parties are directed to appear to discuss the matter with the Court.

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John Doe A.R. et al v. Brad Rowell et al

25CV001606

[1] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiff John Doe A.R.)

TENTATIVE RULING: On July 27, 2026 Counsel filed a Dismissal of Plaintiff John Doe A.R. the instant hearing is, therefore, MOOT.

[2] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiffs Jane Doe J.M. and John Doe M.W.)

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Mayra Aguilar v. General Motors LLC

25CV001964